

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3069

By: Hall

AS INTRODUCED

An Act relating to schools; amending 70 O.S. 2021, Section 3-134, as last amended by Section 6, Chapter 323, O.S.L. 2023 (70 O.S. Supp. 2025, Section 3-134), which relates to charter school applications; removing mandate to submit application to school district; providing option to submit applications to sponsors or to the school district; providing approval and denial procedures; allowing submission of a revised application; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 3-134, as last amended by Section 6, Chapter 323, O.S.L. 2023 (70 O.S. Supp. 2025, Section 3-134), is amended to read as follows:

Section 3-134. A. For written applications filed after July 1, 2024, prior to submission of the application to a proposed sponsor seeking to establish a charter school or to the Statewide Charter School Board to establish a virtual charter school, the applicant shall be required to complete training which shall not exceed ten (10) hours provided by the Statewide Charter School Board on the

process and requirements for establishing a charter school or virtual charter school. The sponsor of a charter school that enters into a new or renewed sponsorship contract on or after July 1, 2024, shall be required to complete training provided by the Statewide Charter School Board or an organization approved by the Statewide Charter School Board on the oversight duties of the sponsor. The Board shall develop and implement the training and publish a list of organizations approved to provide training by July 1, 2024. The Board and organizations approved by the Board may provide the training in any format and manner determined to be efficient and effective including, but not limited to, web-based training.

B. Except as otherwise provided for in Section 3-137 of this title, an applicant seeking to establish a virtual charter school shall submit a written application to the Statewide Charter School Board, and an applicant seeking to establish a charter school shall submit a written application to the proposed sponsor as provided for in subsection E of this section. The application shall include:

1. A mission statement for the charter school or virtual charter school;

2. A description including, but not limited to, background information of the organizational structure and the governing board of the charter school or virtual charter school;

3. A financial plan for the first five (5) years of operation of the charter school or virtual charter school and a description of

1 the treasurer or other officers or persons who shall have primary
2 responsibility for the finances of the charter school or virtual
3 charter school. Such person shall have demonstrated experience in
4 school finance or the equivalent thereof;

5 4. A description of the hiring policy of the charter school or
6 virtual charter school;

7 5. The name of the applicant or applicants and requested
8 sponsor;

9 6. A description of the facility and location of the charter
10 school;

11 7. A description of the grades being served;

12 8. An outline of criteria designed to measure the effectiveness
13 of the charter school or virtual charter school;

14 9. Documentation that the applicants completed training as set
15 forth in subsection A of this section;

16 10. A description of the minimum and maximum enrollment planned
17 per year for each term of the charter contract;

18 11. The proposed calendar for the charter school or virtual
19 charter school and sample daily schedule;

20 12. Unless otherwise authorized by law or regulation, a
21 description of the academic program aligned with state standards;

22 13. A description of the instructional design of the charter
23 school or virtual charter school including the type of learning
24

environment, class size and structure, curriculum overview, and teaching methods;

14. The plan for using internal and external assessments to measure and report student progress on the performance framework developed by the applicant in accordance with Section 3-136 of this title;

15. The plans for identifying and successfully serving students with disabilities, students who are English language learners, and students who are academically behind;

16. A description of cocurricular or extracurricular programs and how they will be funded and delivered;

17. Plans and time lines for student recruitment and enrollment including lottery procedures;

18. The student discipline policies for the charter school or virtual charter school including those for special education students;

19. An organizational chart that clearly presents the organizational structure of the charter school or virtual charter school, including lines of authority and reporting between the governing board, staff, any related bodies such as advisory bodies or parent and teacher councils, and any external organizations that will play a role in managing the school;

20. A clear description of the roles and responsibilities for the governing board, the leadership and management team for the

1 charter school or virtual charter school, and any other entities
2 shown in the organizational chart;

3 21. The leadership and teacher employment policies for the
4 charter school or virtual charter school;

5 22. Proposed governing bylaws;

6 23. Explanations of any partnerships or contractual
7 partnerships central to the operations or mission of the charter
8 school or virtual charter school;

9 24. The plans for providing transportation, food service, and
10 all other significant operational or ancillary services;

11 25. Opportunities and expectations for parental involvement;

12 26. A detailed school start-up plan that identifies tasks, time
13 lines, and responsible individuals;

14 27. A description of the financial plan and policies for the
15 charter school or virtual charter school including financial
16 controls and audit requirements;

17 28. A description of the insurance coverage the charter school
18 or virtual charter school will obtain;

19 29. Start-up and five-year budgets with clearly stated
20 assumptions;

21 30. Start-up and first-year cash-flow projections with clearly
22 stated assumptions;

23 31. Evidence of anticipated fundraising contributions, if
24 claimed in the application;

1 32. A sound facilities plan including backup or contingency
2 plans if appropriate;

3 33. A requirement that the charter school or virtual charter
4 school governing board meet no fewer than ten (10) months of the
5 year in the state and that for those charter schools outside of
6 counties with a population of five hundred thousand (500,000) or
7 more, that a minimum of two (2) members are residents within the
8 geographic boundary of the charter school;

9 34. A requirement that the charter school or virtual charter
10 school follow the requirements of the Oklahoma Open Meeting Act and
11 Oklahoma Open Records Act; and

12 35. A copy of any proposed contract between the governing board
13 of a charter school or virtual charter school and an educational
14 management organization, as defined by Section 5-200 of this title,
15 which meets the requirements of the Oklahoma Charter Schools Act.

16 C. A board of education of a public school district, public
17 body, public or private college or university, private person, or
18 private organization may contract with a sponsor to establish a
19 charter school or virtual charter school. A private school shall
20 not be eligible to contract for a charter school or virtual charter
21 school under the provisions of the Oklahoma Charter Schools Act.

22 D. The sponsor of a charter school is the board of education of
23 a school district, a higher education institution, a private
24 institution of higher learning accredited pursuant to Section 4103

1 of this title, a federally recognized Indian tribe which meets the
2 criteria established in Section 3-132 of this title, or beginning
3 July 1, 2024, the Statewide Charter School Board. Any sponsor
4 authorized pursuant to subsection A of Section 3-132 of this title
5 may sponsor one or more charter schools. The physical location of a
6 charter school sponsored by a board of education of a school
7 district shall be within the boundaries of the sponsoring school
8 district. The physical location of a charter school sponsored by
9 the Statewide Charter School Board pursuant to paragraph 6 of
10 subsection A of Section 3-132 of this title shall be in the school
11 district in which the application originated.

12 E. 1. Beginning July 1, ~~2024~~ 2026, any application seeking to
13 establish a charter school in this state ~~shall~~ may be submitted
14 ~~first~~ to the school district in which the proposed charter school is
15 to be located. The school district board of education shall approve
16 or deny the application within sixty (60) days of receipt of the
17 application. If the charter school application is denied, nothing
18 shall prohibit an applicant from submitting a revised application to
19 the school district board of education, which shall approve or deny
20 the revised application within sixty (60) days of receipt of the
21 application.

22 2. An applicant for a charter school may elect to submit an
23 application to a proposed sponsor listed in paragraphs 2 through 6
24 of subsection A of Section 3-132 of this title, which shall either

1 accept or reject sponsorship of the charter school within ninety
2 (90) days of receipt of the application. If the proposed sponsor
3 rejects the application, it shall notify the applicant in writing of
4 the reasons for the rejection. The applicant may submit a revised
5 application for reconsideration to the proposed sponsor within
6 thirty (30) days after receiving notification of the rejection. The
7 proposed sponsor shall accept or reject the revised application
8 within thirty (30) days of its receipt.

9 3. An applicant for a charter school that has been denied
10 pursuant to paragraph 1 of this subsection may submit an application
11 to a proposed sponsor listed in paragraphs 2 through 6 of subsection
12 A of Section 3-132 of this title, which shall either accept or
13 reject sponsorship of the charter school within ninety (90) days of
14 receipt of the application. If the proposed sponsor rejects the
15 application, it shall notify the applicant in writing of the reasons
16 for the rejection. The applicant may submit a revised application
17 for reconsideration to the proposed sponsor within thirty (30) days
18 after receiving notification of the rejection. The proposed sponsor
19 shall accept or reject the revised application within thirty (30)
20 days of its receipt.

21 ~~3.~~ 4. Beginning July 1, 2024, an applicant for a virtual
22 charter school shall submit an application to the Statewide Charter
23 School Board, which shall either accept or reject sponsorship of the
24 virtual charter school within ninety (90) days of receipt of the

1 application. If the application is rejected, the Statewide Charter
2 School Board shall notify the applicant in writing of the reasons
3 for the rejection. The applicant may submit a revised application
4 for reconsideration to the Statewide Charter school Board within
5 thirty (30) days after receiving notification of the rejection. The
6 Statewide Charter School Board shall accept or reject the revised
7 application within thirty (30) days of its receipt.

8 F. A board of education of a school district, a higher
9 education institution, a private institution of higher learning
10 accredited pursuant to Section 4103 of this title, or a federally
11 recognized Indian tribe shall notify the State Board of Education
12 and the Statewide Charter School Board when it accepts sponsorship
13 of a charter school. The notification shall include a copy of the
14 charter of the charter school.

15 G. Applicants for charter schools and virtual charter schools
16 proposed to be sponsored by the Statewide Charter School Board may,
17 upon rejection of a revised application, proceed to binding
18 arbitration under the commercial rules of the American Arbitration
19 Association with costs of the arbitration to be borne by the
20 applicant.

21 H. If a board of education of a school district, a higher
22 education institution, a private institution of higher learning
23 accredited pursuant to Section 4103 of this title, or a federally
24 recognized Indian tribe accepts sponsorship of a charter school, the

1 administrative, fiscal, and oversight responsibilities of the school
2 district, the higher education institution, the private institution
3 of higher learning accredited pursuant to Section 4103 of this
4 title, or the federally recognized Indian tribe shall be listed in
5 the contract. No administrative, fiscal, or oversight
6 responsibilities of a charter school shall be delegated to a school
7 district unless the school district agrees to enter into a contract
8 to assume the responsibilities.

9 I. A sponsor of a public charter school shall have the
10 following powers and duties over charter schools it sponsors, and
11 the Statewide Charter School Board shall have the following powers
12 and duties over the charter schools and virtual charter schools it
13 sponsors:

14 1. Provide services and oversight of the operations of charter
15 schools or virtual charter schools in the state through annual
16 performance reviews and reauthorization;

17 2. Solicit and evaluate charter applications;

18 3. Approve quality charter applications that meet identified
19 educational needs and promote a diversity of educational choices;

20 4. Decline to approve weak or inadequate charter applications;

21 5. Negotiate and execute sound charter contracts with each
22 approved public charter school or virtual charter school;

23 6. Approve or deny proposed contracts between the governing
24 board of a charter school or virtual charter school and an

1 educational management organization, as defined by section 5-200 of
2 this title;

3 7. Monitor, in accordance with charter contract terms, the
4 performance and legal compliance of charter schools and virtual
5 charter schools; and

6 8. Determine whether each charter contract merits renewal,
7 nonrenewal, or revocation.

8 J. Sponsors shall establish a procedure for accepting,
9 approving, and disapproving charter school applications in
10 accordance with subsection E of this section. The Statewide Charter
11 School Board shall post its application, application process, and
12 application time frames on the Board's website.

13 K. Sponsors including the Statewide Charter School Board shall
14 develop and maintain chartering policies and practices consistent
15 with recognized principles and standards for quality charter
16 sponsoring in all major areas of sponsoring responsibility including
17 organizational capacity and infrastructure, soliciting and
18 evaluating charter school and virtual charter school applications,
19 performance contracting, ongoing charter school and virtual charter
20 school oversight and evaluation, and charter contract renewal
21 decision-making.

22 L. Sponsors acting in their official capacity shall be immune
23 from civil and criminal liability with respect to all activities
24 related to a charter school with which they contract.

1 SECTION 2. This act shall become effective July 1, 2026.

2 SECTION 3. It being immediately necessary for the preservation
3 of the public peace, health or safety, an emergency is hereby
4 declared to exist, by reason whereof this act shall take effect and
5 be in full force from and after its passage and approval.

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7 60-2-14551 SW 01/07/26